

Title: Neem Patent Revocation — The First Biopiracy Defeat at the European Patent Office

Jurisdiction: International

Category: Case Law

Source Citation: Opposition to European Patent No. 0436257 ("Method for Controlling Fungi on Plants by the Aid of a Hydrophobic Extracted Neem Oil"), European Patent Office, revoked 10 May 2000 (appeal dismissed, revocation upheld, 8 March 2005)

Plain English Summary:

The EPO had granted the US Department of Agriculture and W.R. Grace a patent on a neem-based fungicide in 1994. Indian environmentalist Dr. Vandana Shiva's Research Foundation, together with international NGOs, opposed it, arguing neem's fungicidal use had been known in India for over 2,000 years — supported by evidence that an Indian company, Ajay Bio-Tech, had already been making the same fungicide since the early 1980s. The EPO's Opposition Division agreed there was no inventive step, revoked the patent, and this was upheld on appeal in 2005. For Ayurvedic IP strategy, this remains the landmark case establishing that **existing commercial prior use in India (not just ancient texts) defeats claimed "inventive step"** at a foreign patent office.

The Exact Legal Text:

[Patent office proceeding, not a statute — summarized holding.] EP Patent No. 0436257 was granted in September 1994. Legal opposition was filed in June 1995 by the Research Foundation for Science, Technology and Ecology (RFSTE), the International Federation of Organic Agriculture Movements (IFOAM), and the Green Group of the European Parliament, on the ground that neem's fungicidal properties and use had been public knowledge in India for centuries and were already in commercial use. Following oral proceedings and expert testimony (including from an Indian agrochemical company already producing a neem-based fungicide since the early 1980s), the EPO's Opposition Division held there was no inventive step involved and revoked the patent in its entirety on 10 May 2000. The patentee's appeal was dismissed and the revocation finally upheld on 8 March 2005.

Keywords/Triggers:

neem patent revocation, EPO biopiracy case, W.R. Grace neem patent, inventive step challenge, Vandana Shiva case, fungicide patent India, traditional knowledge prior use